

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504301	APPLE VS INDIAN SPRINGS GOLF CLUB LP	MOTION TO COMPEL PLAINTIFF JEFFREY APPLE'S DEPOSITION AND REQUEST FOR SANCTIONS BY INDIAN SPRINGS GOLF CLUB LP

Tentative Ruling: No tentative ruling. Motion was withdrawn on 7.21.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2601043	CALDERON, JR. VS BARNETT BARNETT BARNETT, LLC.	DEMURRER ON COMPLAINT OF RUBEN CALDERON, JR. BY BARNETT BARNETT BARNETT, LLC, JADA BARNETT, ELENA CZARNOWSKI, ELENA CZARNOWSKI AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013, JADE BARNETT AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The Code provides that unless the grounds for a demurrer are distinctly specified, it may be disregarded. (CCP § 430.60.) Where there are several grounds for demurrer, each must be stated in a separate paragraph; and must state whether the challenge is to the entire pleading or to some specific cause of action therein. (CRC 3.1320(a).) If several grounds are stated conjunctively in the same paragraph (e.g., "the complaint is uncertain and fails to state facts sufficient to constitute a cause of action"), the demurrer violates CRC 3.1320(a). If there are several causes of action in the complaint, a demurrer to the entire complaint may be overruled if any cause of action is properly stated. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 36.)

Here, Defendants did not file a notice of motion nor does the memorandum of points and authorities separately identify each challenge. The court could overrule the demurrer on this basis, however shall address the merits of the motion.

Alter Ego and Conspiracy:

Defendants demur to the “alter ego” and “conspiracy” allegations as stated in paragraphs seven and eight of the complaint. (See Demurrer, p. 3:2 – 4:15.)

As mentioned above, Defendants fail to provide a notice of demurrer or otherwise identify individual grounds for demurrer in separate paragraphs nor do they state whether the challenge is to the entire pleading or to some specific cause of action therein. This becomes an issue here because as drafted, Defendants are attempting to “demur” to two individual paragraphs of the complaint. These two paragraphs are part of the “parties and venue” section of the complaint. The proper attack on individual paragraphs of a complaint is a motion to strike. Demurrers do not lie as to only parts of causes of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 (“A demurrer must dispose of an entire cause of action to be sustained.”))

1st Cause of Action Specific Performance:

The elements of specific performance are: “(1) the inadequacy of his legal remedy; (2) an underlying contract that is both reasonable and supported by adequate consideration; (3) the existence of a mutuality of remedies; (4) contractual terms which are sufficiently definite to enable the court to know what it is to enforce; and (5) a substantial similarity of the requested performance to that promised in the contract.” (*Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal.App.4th 463, 472 [internal citation and quotation marks omitted].)

Defendants argue this cause of action fails because the “handwritten” contract lacks essential terms, fails to satisfy the statute of frauds, and Plaintiffs fail to allege facts showing how Defendants are bound. Defendants’ first two arguments are without merit as they go to the merits of the allegations rather than the sufficiency of the pleading.

Regarding the third argument, the complaint alleges alter ego liability as mentioned above, and successors in interest.

The requirements for alter ego are (1) a unity of interest and ownership and (2) if the acts are treated as the corporations alone, an inequitable result would follow. (*Associated Vendors, Inc. v. Oakland Meat Co.* (1962) 210 Cal.App.2d 825, 837.) Factors that are considered when determining if the doctrine of alter ego applies are commingling of funds, holding out by one entity that it is liable for the debts of another, identical equitable ownership, use of the same offices and employees, use of one as a mere shell for the other, inadequate capitalization, disregard of corporate formalities, and identical directors and officers. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538-539.) The complaint states that all Defendants are alter egos with a unity of interest. (Complaint, ¶ 7.) Defendants, as stated above, argue this is conclusory. The rules of pleading require, however, that only ultimate facts be alleged; evidentiary facts supporting the allegation of ultimate fact need not be pleaded. (*McKelly v. Washington Mut., Inc.* (2006) 142 Cal.App.4th 1457, 1469.) The distinction between “ultimate facts” and “conclusions” depends on whether the pleading gives adequate notice of the claims/defenses to be presented. (*Estate of Lind* (1989) 209 Cal.App.3d 1424, 1434.) Here, adequate notice is provided.

The same can be said for how Jada Barnett and Elena Czarnowski both individually and as co-trustees of the Trust are bound by the contracts entered into by the Barnetts. The complaint states “Defendants are bound by the Lease and the PSA” as “successors and/or assigns.” (Complaint, ¶ 28.)

Third Cause of Action – Quiet Title:

A quiet title action seeks to establish or “quiet” title to an interest in real property as between adverse claimants. (CCP § 760.020(a); *Deutsche Bank Nat’l Trust Co. v. McGurk* (2012) 206 Cal.App.4th 201, 210.) It is an appropriate remedy to establish any kind of legal or equitable rights, title, estate, lien or interest in real property as against an adverse claim or cloud on title. (CCP §§ 760.010(a) and 760.020(a).)

A complaint for quiet title must be verified and include: (1) the subject property’s description; (2) plaintiff’s title as to which a determination is sought and the basis of the title; (3) adverse claims to plaintiff’s title against which a determination is sought; (4) the date as of which the determination is sought (if other than the date the complaint is filed, a statement of reasons why that date is sought); and (5) a prayer for the determination of plaintiff’s title against the adverse claims. (CCP § 761.020; *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 802.)

“An element of a cause of action for quiet title is ‘[t]he adverse claims to the title of the plaintiff against which a determination is sought.’ (CCP § 761.020, subd. (c).)” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 802.)

The complaint contains a description of the property. (Complaint, ¶ 13.) However, the complaint does not clearly allege Plaintiffs’ title and the basis for same. Plaintiffs allege they have a lease and a right to purchase for \$1,500,000. (*Id.* at ¶ 23.) The complaint contains various allegations regarding payments towards the purchase price, as well as threats of lease termination. This cause of action is unclear as to what interest Plaintiffs are seeking to protect against the adverse claims – their leasehold interest, the right to purchase, or actual ownership via purchase. The complaint also fails to allege a date for which the determination is sought.

4th Cause of Action Promissory Estoppel:

“The elements of promissory estoppel are (1) a clear promise, (2) reliance, (3) substantial detriment, and (4) damages ‘measured by the extent of the obligation assumed and not performed.’” (*Toscano v. Greene Music* (2004) 124 Cal.App.4th 685, 692.) The promisee must have reasonably and foreseeably relied on the promise, such that it would be an injustice if the promise was not enforced. (*Aceves v. U.S. Bank, N.A.* (2011) 192 Cal.App.4th 218, 227.) “Promissory estoppel is “a doctrine which employs equitable principles to satisfy the requirement that consideration must be given in exchange for the promise sought to be enforced.” [Citation.] [Citation.] Because promissory estoppel is an equitable doctrine to allow enforcement of a promise that would otherwise be unenforceable, courts are given wide discretion in its application.” (*US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901–902.)

“[A]n action based on a false promise is simply a type of intentional misrepresentation, i.e., actual fraud.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 159.) “Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made.” (*Id.* at 157.)

By grouping all “Defendants” together, the complaint fails to sufficiently plead promissory estoppel. Plaintiffs must plead each element of promissory estoppel specifically as to each individual defendant. The general allegation that “Defendants” promised to sell Plaintiffs the property is insufficient. (Complaint, ¶ 55.)

9th Cause of Action Restitution:

“Under the law of restitution, ‘[a]n individual is required to make restitution if the person receives a benefit at another’s expense.’” (*Id.* at 389.) A restitution claim requires that it would be unjust for the person receiving the benefit to retain it. (*Id.*)

Under this cause of action, Plaintiffs seeks restitution from Defendants for overpaid rent. (Complaint, ¶¶ 85-90.) Defendants argue this contradicts other allegations that Plaintiffs “increased their payments per year in excess of the Consumer Price Index amount...” (Complaint, fn. 3.) It is well established that “a party may plead in the alternative and may make inconsistent allegations.” (*Adams v. Paul* (1995) 11 Cal.4th 583, 593; see also *Crowley v. Katleman* (1994) 8 Cal.4th 666, 690–691.)

Demurrer as to “Alter Ego” and “Conspiracy” allegations is OVERRULED.

Demurrer as to the 1st and 9th Causes of Action OVERRULED.

Demurrer as to the 3rd and 4th Causes of Action SUSTAINED, with leave to amend.

Plaintiffs to file an amended complaint within 15 days.

Case Management Conference continued from 8.28.26 to 9.29.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601043	CALDERON, JR. VS BARNETT BARNETT BARNETT, LLC.	MOTION TO STRIKE COMPLAINT OF RUBEN CALDERON, JR. BY BARNETT BARNETT BARNETT, LLC, JADA BARNETT, ELENA CZARNOWSKI, ELENA CZARNOWSKI AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013, JADE BARNETT AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013

Tentative Ruling: The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.